COMMONWEALTH OF PENNSYLVANIA
DEPARTMENT OF STATE
BEFORE THE STATE BOARD OF MEDICINE

Commonwealth of Pennsylvania, Bureau of Professional and Occupational Affairs	:	
v.	:	**Case No. 24-49-003963**
Eric Clark Welling, M.D., Respondent	:	

FINAL ORDER MAKING HEARING EXAMINER'S ADJUDICATION AND ORDER FINAL

AND NOW, this 13th day of February 2026, noting that neither party filed an *Application for Review* and that the State Board of Medicine (Board) did not issue a *Notice of Intent to Review*, in accordance with 1 Pa. Code § 35.226(a)(3) and 49 Pa. Code § 16.57, the hearing examiner's *Adjudication and Order*, filed on December 12, 2025, and appended to this Order as **Attachment A**, is now the **FINAL ORDER** of the Board in this proceeding. The license to practice medicine and surgery issued to Eric Clark Welling, M.D. (Respondent), license number MD477850, is hereby **REPRIMANDED**.

This Order is retroactive to **January 1, 2026**, twenty days from the date of mailing of the *Adjudication and Order*.

BY ORDER:

BUREAU OF PROFESSIONAL AND OCCUPATIONAL AFFAIRS

ARION R. CLAGGETT
ACTING COMMISSIONER

STATE BOARD OF MEDICINE

DONALD M. YEALY, M.D.
CHAIR

Prothonotary Filed On:
Feb 13 2026 11:47 AM
Department of State

For Respondent: 9489.0090.0027.6644.1952.45	Eric Clark Welling, M.D. 6599 S. Juliet Way Salt Lake City, UT 84121 ***Via Email:*** welling.eric@gmail.com
For the Commonwealth:	Jason Anderson, Esquire
Board Counsel:	Dana M. Archer, Esquire
Date of Mailing:	February 13, 2026

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Attachment A

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Department of State
Prothonotary

COMMONWEALTH OF PENNSYLVANIA
DEPARTMENT OF STATE
BEFORE THE STATE BOARD OF MEDICINE

Commonwealth of Pennsylvania,	:	
Bureau of Professional and	:	
Occupational Affairs	:	
	:	**Case No. 24-49-003963**
vs.	:	
	:	
Eric Clark Welling, M.D.,	:	
Respondent	:	

ADJUDICATION AND ORDER

Hope S. Goldhaber
Hearing Examiner

COMMONWEALTH OF PENNSYLVANIA
GOVERNOR'S OFFICE OF GENERAL COUNSEL
DEPARTMENT OF STATE
OFFICE OF HEARING EXAMINERS
P.O. Box 60130
Harrisburg, PA 17106-0130
(717) 772-2686

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HISTORY

This matter comes before a hearing examiner for the State Board of Medicine ("Board") on the Commonwealth's filing of a single count *Order to Show Cause* ("*OTSC*") on April 5, 2024, against Eric Clark Welling, M.D. ("Respondent"). In this single count, the Commonwealth charged that Respondent is subject to disciplinary action under Section 41(4) of the Medical Practice Act of 1985[1] ("Act"), 63 P.S. § 422.41(4), because Respondent had a license or other authorization to practice the profession revoked, suspended, or had other disciplinary action taken or an application for a license or other authorization refused, revoked, or suspended by a proper licensing authority of another state, territory, possession, or country, or a branch of the Federal Government.

On April 8, 2024, the Commonwealth mailed the *OTSC* to Respondent by certified mail, electronic return receipt requested, and by first-class mail, postage prepaid, at Respondent's last known address on file with the Board following the application which he filed on January 18, 2024, for renewal/reactivation of his license: 6599 Juliet Way, Salt Lake City, UT 84121.[2] On April 11, 2024, the certified mailing of the *OTSC* was delivered, left with individual, as evidenced by the USPS Tracking for Certified Mail™ item number 9489 0090 0027 6567 9793 42. Hence, the Commonwealth accomplished service of its *OTSC* in accordance with the requirements of the General Rules of Administrative Practice and Procedure ("GRAPP"), 1 Pa. Code § 31.1 *et seq.*, at 1 Pa. Code § 33.31.[3]

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[1] Act of December 20, 1985, P.L. 457, No. 112, *as amended,* 63 P.S. §§ 422.1-422.51a.

[2] Technically, "Juliet Way" should have been "S. Juliet Way." (Board records)

[3] **Section 33.31. Service by the agency.**

> Orders, notices and other documents originating with an agency, including forms of agency action, complaints and similar process and other documents designated by the agency for this purpose, shall be served by the office of the agency by mail, except when service by another method shall be specifically required by the agency, by mailing a copy thereof to the person to be served, addressed

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The *OTSC* directed Respondent to file a written answer within thirty (30) days of the date on the most recent Certificate of Service associated with the *OTSC* and specifically advised Respondent that the factual allegations of the *OTSC* may be deemed admitted if Respondent failed to file an answer within the time period allowed.[4] Respondent was also advised that if he failed to file an answer, the Board may revoke, suspend, or impose other restrictions against his license; and the Board may also impose a civil penalty of up to $10,000.00 for each violation of the Act.

Respondent was granted an extension/Stay of the requirement to respond to the *OTSC* through a May 17, 2024 email communication with Prosecuting Attorney Jason Anderson following the completion of a May 14, 2024 administrative hearing on Respondent's petition for renewal/reactivation of his license. On or about July 17, 2025, through an email communication with Prosecuting Attorney Jason Anderson, Respondent was made aware of the expiration of the deadline, the failure to timely respond, and the subsequent procedural step of filing a Motion for Default Judgment. As of August 20, 2025, Respondent had not filed a written Answer to the *OTSC*.

On August 21, 2025, the Commonwealth filed a *Motion to Deem Facts Admitted and Enter Default* ("*MDFA*"). The *MDFA* was mailed to Respondent on August 21, 2025, by first-class mail, postage prepaid, at 6599 Juliet Way, Salt Lake City, UT 84121. This is the same address where the *OTSC* had been served. Respondent did not file a response to the *MDFA*.

On October 7, 2025, an *Order Granting Commonwealth's Motion to Deem Facts Admitted*

> to the person designated in the initial pleading or submittal at his principal office or place of business. If service is not accomplished by mail, it may be effected by anyone authorized by the agency in the manner provided in 231 Pa. Code Rules 400—441 (relating to service of original process).

1 Pa. Code § 33.31.

[4] The only Certificate of Service associated with the *OTSC* is the one dated April 8, 2024, which is attached to the *OTSC*.

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and Enter Default ("MDFA Order") was issued on grounds that Respondent received the *OTSC* but failed to file an answer as required. The *MDFA Order* was mailed to Respondent on October 7, 2025, by first-class mail, postage prepaid, at Respondent's address on file with the Board: 6599 S. Juliet Way, Salt Lake City, UT 84121.[5] The *MDFA Order* was not returned to the Department of State Prothonotary and, therefore, it is presumed to have been delivered to Respondent.

Pursuant to section 35.37 of GRAPP, 1 Pa. Code § 35.37,[6] the *MDFA Order* advised Respondent that he was in default of filing an answer and that the factual allegations in the *OTSC* were deemed admitted. The *MDFA Order* also advised Respondent that an Adjudication and Order would be issued in due course. To date, Respondent has not responded to either the *OTSC* or the *MDFA*.

This matter is now ripe for disposition.

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[5] The *MDFA Order* was also mailed to Respondent by first-class mail, postage prepaid, at 6599 Juliet Way, Salt Lake City, UT 84121. (Case No. 24-49-003963) The *MDFA Order* was not returned to the Department of State Prothonotary and, therefore, it is presumed to have been delivered to Respondent. (Case No. 24-49-003963)

[6] **§ 35.37. Answers to orders to show cause.**

> A person upon whom an order to show cause has been served…shall, if directed so to do, respond to the same by filing within the time specified in the order an answer in writing….A respondent failing to file an answer within the time allowed shall be deemed in default, and relevant facts stated in the order to show cause may be deemed admitted.

1 Pa. Code § 35.37.

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FINDINGS OF FACT

1. Respondent holds a license to practice as a medical physician and surgeon in the Commonwealth of Pennsylvania, license number MD477850. (Official Notice of Board records[7]; OTSC ¶ 1)

2. Respondent's license was originally issued on May 2, 2022, and is active through December 31, 2026. (Board records; OTSC ¶ 2)

3. Absent further action by the Board, Respondent's license may be renewed or reactivated upon the filing of the appropriate documentation and payment of the necessary fees. (Board records; OTSC ¶ 3)

4. At all times pertinent to the factual allegations in the Commonwealth's *OTSC*, Respondent held a license to practice as a medical physician and surgeon in the Commonwealth of Pennsylvania. (Board records; OTSC ¶ 4)

5. Respondent's last known address on file with the Board is 6599 S. Juliet Way, Salt Lake City, UT 84121.[8] (Board records; OTSC ¶ 5)

Wyoming Disciplinary Action

6. At all times relevant to the below allegations, Respondent held a certification/authorization/license to practice as a physician in Wyoming, license no. 10015A. (OTSC ¶ 6; OTSC at Exhibit A)

7. On or about July 22, 2022, the Wyoming Board of Medicine ("Wyoming Board") issued a Board Officers' Order for Alcohol, Substance and Mental Health Examination pertaining

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[7] Official notice of the Board's records may be taken pursuant to the General Rules of Administrative Practice and Procedure (GRAPP), 1 Pa. Code § 31.1 *et seq.*, at § 35.173, which permits the presiding officer to take official notice of the Board's own records. *See Gleeson v. State Bd. of Medicine*, 900 A.2d 430, 440 (Pa. Cmwlth. 2006), *appeal denied*, 917 A.2d 316 (Pa. 2007). All citations to "Board records" are based on this taking of official notice.

[8] This is Respondent's office address. (OTSC ¶ 5)

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to Respondent. (OTSC ¶ 7; OTSC at Exhibit A)

8. The Board Officers' Order for a Mental Health Evaluation was based on, among other things, the following: the Wyoming Board's receipt of National Practitioner Data Bank ("NPDB") reports about the suspension of Respondent's clinical privileges at Davis Hospital and Medical Center in Layton, Utah, due to anesthesia charting errors; the Wyoming Board's receipt of information from Respondent indicating that The Davis Hospital Medical Executive Committee required him to undergo an evaluation at Acumen Assessments ("Acumen") in Kansas; and the Wyoming Board's receipt of medical records from Respondent's treating physician indicating that Respondent was going against the recommendations made by Acumen. (OTSC ¶ 12; OTSC at Exhibit A)

9. Following Respondent's failure to comply with the July 22, 2022 Board Officers' Order, the Wyoming Board issued a November 4, 2022 Order of Summary Suspension at Docket No. 23-12, in which the Wyoming Board determined that Respondent's continued possession of a Wyoming physician license, and his ongoing ability to practice medicine in Wyoming using that license, poses an imminent and immediate threat to public health, safety, and welfare of the people of Wyoming that imperatively required the immediate summary suspension of Respondent's license to practice as a physician in Wyoming. (OTSC ¶ 8; OTSC at Exhibit A)

10. On or about December 14, 2023, the Wyoming Board issued a Findings of Fact, Conclusions of Law, and Order Lifting the Summary Suspension Upon the Wyoming Physician License of Eric C. Welling, M.D.; Order Suspending the Wyoming Physician License of Eric C. Welling, M.D., Wyoming Physician License No. 10015A; Order Imposing Civil Fine. (OTSC ¶ 9; OTSC at Exhibit F's Attachment A)

11. The Wyoming Board document referenced in Paragraph 9 vacated the November

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4, 2022 Order of Summary Suspension, lifted the summary suspension of Respondent's Wyoming license, but then immediately suspended said Wyoming license to practice as a physician, as well as restricting Respondent's ability to seek the reinstatement of his Wyoming license and imposing a $5,000.00 civil fine. (OTSC ¶ 10; OTSC at Exhibit F's Attachment A)

12. The aforementioned actions by the Wyoming Board constitute a disciplinary action by a proper licensing authority of another state. (OTSC ¶ 11)

Washington Disciplinary Action

13. At all times relevant to the below allegations, Respondent held a certification/authorization/license to practice as a physician in Washington, license no. IMLC.MD.61275435, as a Physician and Surgeon License through the Interstate Medical Licensure Compact. (OTSC ¶ 13; OTSC at Exhibit B)

14. On or about August 3, 2023, the State of Washington, Washington Medical Commission ("Washington Board") issued an Ex Parte Order of Summary Suspension, Master Case No. M2023-492, which ordered the summary suspension of Respondent's Washington license to practice as a physician, IMLC.MD.61275435, following a determination, pursuant to RCW18.130.370, that Respondent engaged in unprofessional conduct based on his failure to comply with the July 22, 2022 Wyoming Board Officers' Order as set forth in the November 4, 2022 Wyoming Board Order of Summary Suspension. (OTSC ¶ 14; OTSC at Exhibit B)

15. Additionally, on or about January 3, 2024, the Washington Board issued a Findings of Fact, Conclusions of Law and Final Order of Default, in which it indefinitely suspended the license of Respondent to practice as a physician in Washington. (OTSC ¶ 15; OTSC at Exhibit B)

16. The aforementioned actions by the Washington Board constitute a disciplinary action by a proper licensing authority of another state. (OTSC ¶ 16)

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Tennessee Disciplinary Action

17. At all times relevant to the below allegations, Respondent held a certification/authorization/license to practice as a physician in Tennessee as a Compact Medical Doctor, license no. 65466. (OTSC ¶ 18; OTSC at Exhibit C)

18. On or about January 10, 2023, the State of Tennessee, Department of Health, Tennessee Board of Medical Examiners ("Tennessee Board") issued an Order for Suspension, Case No. 2022029211, in which Respondent's license to practice in Tennessee was suspended for a period of ninety (90) days (until April 8, 2023) pursuant to IMLC T.C.A. § 63-6-402 § 24(c) and Rule 6.5(g) due to Respondent's license in another member state of the IMLC being suspended, revoked, or surrendered/relinquished in lieu of discipline. (OTSC ¶ 19; OTSC at Exhibit C)

19. Additionally, on or about March 5, 2024, Respondent and the Tennessee Board entered into an Agreed Order, in which the suspension of Respondent's license to practice in Tennessee was lifted, but said license was then immediately revoked. (OTSC ¶ 20; OTSC at Exhibit C)

20. The aforementioned actions by the Tennessee Board constitute a disciplinary action by a proper licensing authority of another state. (OTSC ¶ 21)

South Dakota Disciplinary Action

21. At all times relevant to the below allegations, Respondent held a certification/authorization/license to practice as a physician in South Dakota through the Interstate Medical License Compact.[9] (OTSC ¶ 23; OTSC at Exhibit D)

22. On or about January 11, 2023, the State of South Dakota, Department of Health,

[9] The State of Utah is identified as Respondent's principle state of licensure for the Interstate Medical License Compact. (OTSC at footnote no. 2)

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Board of Medical and Osteopathic Examiners ("South Dakota Board") issued an Order for Summary Suspension, No. 23-115, pursuant to SDCL 36-4-44, § 10(d) which ordered the summary suspension of Respondent's South Dakota license to practice as a physician, for 90 days from the entry of the November 4, 2022 Wyoming Board Order of Summary Suspension. (OTSC ¶ 24; OTSC at Exhibit D)

23. Additionally, on or about March 14, 2024, the South Dakota Board issued Final Order adopting Respondent's Consent to Voluntarily Surrender his South Dakota medical license, with the surrender deemed to be effective as of February 20, 2024. (OTSC ¶ 25; OTSC at Exhibit D)

24. The aforementioned actions by the South Dakota Board constitute a disciplinary action by a proper licensing authority of another state. (OTSC ¶ 26)

New Hampshire Disciplinary Action

25. At all times relevant to the below allegations, Respondent held a certification/authorization/license to practice medicine as a Compact Physician in New Hampshire, License No. 22389, through the Interstate Medical License Compact. (OTSC ¶ 28; OTSC at Exhibit E)

26. On or about December 8, 2022, the State of New Hampshire, Office of Professional Licensure and Certification, Board of Medicine ("New Hampshire Board") issued an Order of Emergency Suspension, Docket No. 2022-MED-025, pursuant to RSA 541-A:30 (III) and 329: 18-b, which ordered the immediate emergency suspension of Respondent's license to practice as a physician in New Hampshire. (OTSC ¶ 29; OTSC at Exhibit E)

27. The aforementioned action by the New Hampshire Board constitutes a disciplinary action by a proper licensing authority of another state. (OTSC ¶ 30)

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Kentucky Disciplinary Action

28. At all times relevant to the below allegations, Respondent held a certification/authorization/license to practice as a physician in Kentucky, License No. C0682. (OTSC ¶ 32; OTSC at Exhibit F)

29. On or about December 21, 2022, the Kentucky Board of Medical Licensure ("Kentucky Board") issued an Emergency Order of Suspension Pursuant to Interstate Medical Licensure Compact, pursuant to KRS 311.592(1) and 13B.125(1), which ordered the suspension of Respondent's Kentucky license to practice as a physician, for a period of ninety (90) days following Respondent's license in another member state of the IMLC being suspended, revoked, or surrendered/relinquished in lieu of discipline. (OTSC ¶ 33; OTSC at Exhibit F)

30. Additionally, on or about February 20, 2023, the Kentucky Board issued an Amended Emergency Order of Suspension, Case No. 2081, which suspended Respondent's Kentucky license and prohibited him from practicing medicine in Kentucky, under KRS 311.592(1). (OTSC ¶ 34; OTSC at Exhibit F)

31. Further, on or about February 15, 2024, the Kentucky Board issued an Agreed Order, Case No. 2081, which limited/restricted Respondent's license to practice medicine in Kentucky for an indefinite period of time. Specifically, Respondent was prohibited from practicing medicine in Kentucky, and he was required to pay costs in the amount of $843.75. (OTSC ¶ 35; OTSC at Exhibit F)

32. The aforementioned actions by the Kentucky Board constitute a disciplinary action by a proper licensing authority of another state. (OTSC ¶ 36)

The Reactivation of Respondent's License to Practice Medicine and Surgery in Pennsylvania

33. Respondent, an anesthesiologist, applied for the reactivation of his Pennsylvania

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medical license on or about January 18, 2024. (Board records at Case No. 24-49-003930)

34. By correspondence dated March 7, 2024, the Board provisionally denied Respondent's reactivation application based on Chapter 63 of the Act, 63 P.S. §§ 422.41(1), (4) and (5) and 63 P.S. § 422.22(b). (Board records at Case No. 24-49-003930)

35. On March 20, 2024, Respondent appealed the Board's provisional denial. (Board records at Case No. 24-49-003930)

36. A video hearing was held on May 14, 2024, after which the hearing examiner issued a *Proposed Adjudication and Order* on June 18, 2024, which recommended that the Board grant the reactivation application. (Board records at Case No. 24-49-003930)

37. The Board agreed with the hearing examiner's proposed conclusion, but the Board did not agree with the rationale. (Board records at Case No. 24-49-003930)

38. On September 20, 2024, the Board issued a *Final Adjudication and Order* by which it granted the reactivation of Respondent's license to practice medicine and surgery in the Commonwealth of Pennsylvania. (Board records at Case No. 24-49-003930)

39. In its *Final Adjudication and Order*, the Board made the following relevant findings of fact:[10]

* * *

Applicant's[11] Professional History and Discipline

8. In 2021, Applicant was employed at Davis Hospital in Layton, Utah and he was trained on an automatic anesthesia record-keeping system called SIS, which used a drug dispensing computer system called Pyxis.

9. Proper use of the systems required Applicant to get the medications from Pyxis and then log that into the SIS program upon providing it to the patient.

[10] The Board's citation to the notes of testimony and exhibits have been omitted from the Board's findings of fact.

[11] In his case involving the reactivation of his Pennsylvania medical license, Respondent was referred to as Applicant. (Board records at Case No. 24-49-003930)

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10. Applicant had an unacceptable error rate in logging his anesthesia medications resulting in him being placed under a focus review from March 2021 to September 2021.

11. Applicant adjusted his in-room habits and shadowed three other anesthesiologists in an attempt to correct mistakes and retrain himself.

12. Applicant was also to receive a weekly email from the pharmacy director describing any errors regarding his prescription of anesthesia medications, which the Applicant later changed to his Steward Healthcare email address.

13. Applicant never tested positive for any controlled substances.

14. Applicant did not check his Steward Healthcare email address and believed he had corrected the errors.

15. Applicant ultimately failed his peer review based on an 18% anesthesia medication discrepancy rate.

16. On or about October 25, 2021, Applicant's license was summarily suspended in Utah and he was sent to Acumen Assessments ("Acumen") for an evaluation.

17. Acumen concluded that the Applicant needed to complete the following five things:

    - Proper medication and psychotherapy,
    - Construct a reasonable plan to prevent medication management problems,
    - Take a leave of absence,
    - Complete another peer review, and
    - Complete partial inpatient for physicians in recovery.

18. The Utah Medical Board ultimately allowed Applicant to keep his license, which is currently in good standing.

19. Applicant also had a medical license in Wyoming.

20. By Order dated July 22, 2022, the Wyoming Medical Board directed Applicant to complete an alcohol substance and mental health examination and be reevaluated by Acumen.

21. The Wyoming Medical Board found that Applicant failed to comply with attendance of a pre-approved alcohol substance and mental health examination by Acumen to determine his ability to practice safely and

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skillfully.

22. The Wyoming Medical Board summarily suspended the Applicant's license on or about November 4, 2022.

23. Applicant appealed the Wyoming Medical Board decision and took a leave of absence from Davis Hospital.

24. Applicant subsequently applied for licenses in multiple states through the Interstate Medical Licensure Compact ("IMLC") and was granted licenses in the following states: Washington, Idaho, South Dakota, Tennessee, Kentucky, Michigan, and New Hampshire.

25. Applicant was offered a full-time job at the Michigan facility, but he accepted a full-time [job] with US Anesthesia Partners ("USAP") working at Sunrise Hospital in Las Vegas, Nevada in August 2022.

26. As a result of the Wyoming license suspension, other states participating in the IMLC also suspended his license, including Idaho, Washington, Kentucky, Tennessee, Michigan, and New Hampshire.

27. Nevada did not suspend the Applicant's license and instead required him to see a psychologist, which the Applicant did.

Current Status of Applicant's Out-of-State Medical and DEA Licenses

28. Applicant has active licenses to practice medicine in California, Nevada, and Utah.

29. Applicant has inactive licenses in Washington and Idaho.

30. Applicant has suspended licenses in Wyoming, South Dakota, Tennessee, Kentucky, New Hampshire, and Michigan.

31. Applicant has DEA licenses in Nevada and Utah.

32. Applicant has a pending DEA license in North Carolina.

Facts Material to Reinstatement

33. Applicant testified that he has complied with all five requirements from Acumen, including ongoing treatment with a psychiatrist and psychologist and continuing prevention of medication management.

34. Applicant sees Mark Chase, a psychologist, as part of his aftercare program.

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35. Applicant testified that he has been diagnosed with cyclothymia, which is a mild condition of bipolar and he has been prescribed medications and is compliant with medications for that condition.

36. Applicant completed another assessment with the Professional Review Network in Lawrence, Kansas, which resulted in the same recommendations as Acumen.

37. Applicant has an internist who prescribes all personal medications to him or his family.

38. Applicant took a medical leave of absence until June 2022, when he was hired for locums practice at Upper Michigan Surgical Suites in Michigan, where he did not have to repeat his errors from Davis Hospital because the Michigan facility used handwritten notes.

39. Applicant uses the Medaxion and Meditech systems for anesthesia record keeping at Sunrise Hospital and has not had any anesthesia charting errors while employed for USAP in Las Vegas, Nevada.

40. Applicant has no pending criminal charges.

* * *

(Board records at Case No. 24-49-003930)

40. In the discussion section of its *Final Adjudication and Order*, the Board explained the reason why it had provisionally denied Respondent's reactivation application:

* * *

> … Specifically, the Board provisionally denied the application because the Wyoming Medical Board summarily suspended Applicant's license to practice as a physician in that state based on his failure to comply with the attendance of a pre-approved alcohol substance and mental health examination by Acumen to determine his ability to practice safely and skillfully. Following that decision, several other jurisdictions participating in the multi-state medical licensing compact suspended his license. This raised concerns to the Board that Applicant may be an immediate danger to the citizens of this Commonwealth should his license be reactivated.

* * *

(Board records at Case No. 24-49-003930)

41. In the discussion section of its *Final Adjudication and Order*, the Board explained

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why it ultimately granted Respondent's application seeking reactivation of his license to practice medicine and surgery:

* * *

> … Specifically, Applicant testified that he has complied with all five requirements from the Acumen assessment, including ongoing treatment with a psychiatrist and psychologist and the continuation of medication management. Applicant has been diagnosed with cyclothymia, which is a mild condition of bipolar and he has been prescribed medications and is compliant with medications for that condition. Additionally, Applicant sees Mark Chase, a psychologist, as part of his aftercare program. In addition to the original Acumen assessment in Utah, Applicant completed another assessment with the Professional Review Network in Lawrence, Kansas, which resulted in the same recommendations as Acumen, all of which Applicant has met.
>
> The hearing in this matter has allowed the Board to obtain the information necessary to move forward with Applicant's reactivation application. Given Applicant's compliance with Acumen and his adherence to appropriately handling his mental health, the Board is without grounds to deny Applicant's reactivation application. However, per *Levengood*, the reactivation of Applicant's license does not provide grounds for estopping the Board from taking disciplinary action against Applicant's license for his violations. …

(Board records at Case No. 24-49-003930)

Service of OTSC

42. On April 5, 2024, the Commonwealth filed an *OTSC* alleging that Respondent is subject to disciplinary action under Section 41(4) of the Act, 63 P.S. § 422.41(4), because Respondent had a license to practice the profession revoked, suspended, or otherwise disciplined by the proper licensing authorities of the following six states: Wyoming, Washington, Tennessee, South Dakota, New Hampshire, and Kentucky. (OTSC; MDFA ¶ 1)

43. On April 8, 2024, the Commonwealth mailed the *OTSC* to Respondent by certified mail, electronic return receipt requested, and by first-class mail, postage prepaid, at Respondent's last known address on file with the Board following the application which he filed on January 18,

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2024, for renewal/reactivation of his license: 6599 Juliet Way, Salt Lake City, UT 84121.[12] (MDFA ¶ 3)

44. On April 11, 2024, the certified mailing of the *OTSC* was delivered, left with individual, as evidenced by the USPS Tracking for Certified Mail™ item number 9489 0090 0027 6567 9793 42. (MDFA ¶¶ 4-5; MDFA at Exhibit B)

Due Process

45. The *OTSC* directed Respondent to file a written answer within thirty (30) days of the date on the most recent Certificate of Service associated with the *OTSC* and specifically advised Respondent that the factual allegations of the *OTSC* may be deemed admitted if Respondent failed to file an answer within the time period allowed.[13] (OTSC at Notice and Procedures)

46. The *OTSC* also advised Respondent that if he failed to file an answer, the Board may revoke, suspend, or impose other restrictions against his license; and the Board may also impose a civil penalty of up to $10,000.00 for each violation of the Act. (OTSC at Penalties and Procedures)

47. Respondent was granted an extension/Stay of the requirement to respond to the *OTSC* through a May 17, 2024 email communication with Prosecuting Attorney Jason Anderson following the completion of a May 14, 2024 administrative hearing on Respondent's petition for renewal/reactivation of his license. (MDFA ¶ 7)

48. On or about July 17, 2025, through an email communication with Prosecuting

[12] Technically, "Juliet Way" should have been "S. Juliet Way." (Board records)

[13] The only Certificate of Service associated with the *OTSC* is the one dated April 8, 2024, which is attached to the *OTSC*.

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Attorney Jason Anderson, Respondent was made aware of the expiration of the deadline, the failure to timely respond, and the subsequent procedural step of filing a Motion for Default Judgment. (MDFA ¶¶ 8-9; MDFA at Exhibit C)

49. As of August 20, 2025, Respondent had not filed an Answer to the *OTSC*. (MDFA ¶ 10)

50. On August 21, 2025, the Commonwealth filed an *MDFA* in this matter and mailed it to Respondent by first class mail, postage prepaid, at the same address at which the *OTSC* had been served: 6599 Juliet Way, Salt Lake City, UT 84121. (MDFA at Certificate of Service)

51. Respondent did not file a response to the *MDFA*. (Case No. 24-49-003963)

52. On October 7, 2025, an *MDFA Order* was issued, entering judgment by default and deeming the factual allegations in the *OTSC* admitted, on grounds that Respondent received the *OTSC* but failed to file an answer as required. (Case No. 24-49-003963)

53. The *MDFA Order* was mailed to Respondent on October 7, 2025, by first-class mail, postage prepaid, at Respondent's address on file with the Board: 6599 S. Juliet Way, Salt Lake City, UT 84121.[14]

54. The *MDFA Order* mailed to Respondent at 6599 S. Juliet Way, Salt Lake City, UT 84121, was not returned to the Department of State Prothonotary and, therefore, it is presumed to have been delivered to Respondent. (Case No. 24-49-003963)

55. Respondent was served with the *OTSC*, *MDFA* and *MDFA Order* filed of record in this matter. (Case No. 24-49-003963)

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[14] The *MDFA Order* was also mailed to Respondent by first-class mail, postage prepaid, at 6599 Juliet Way, Salt Lake City, UT 84121. (Case No. 24-49-003963) The *MDFA Order* was not returned to the Department of State Prothonotary and, therefore, it is presumed to have been delivered to Respondent. (Case No. 24-49-003963)

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CONCLUSIONS OF LAW

1. The Board has jurisdiction in this matter. (Findings of Fact 1-4)

2. Respondent has been afforded reasonable notice of the charges against him and an opportunity to be heard in this proceeding, in accordance with the Administrative Agency Law, 2 Pa. C.S. § 504. (Findings of Fact 5, 42-55)

3. Respondent is subject to disciplinary action under Section 41(4) of the Act, 63 P.S. § 422.41(4), in that Respondent had his license to practice medicine revoked, suspended, or otherwise disciplined by the proper licensing authorities of the following six states: Wyoming, Washington, Tennessee, South Dakota, New Hampshire, and Kentucky. (Findings of Fact 6-32)

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DISCUSSION

Violations

A board-regulated practitioner in Pennsylvania who is disciplined by a proper licensing authority of another state is subject to disciplinary action in Pennsylvania under Section 41(4) of the Act as follows:

> **Section 41. Reasons for refusal, revocation, suspension or other corrective actions against a licensee or certificate holder**
>
> The board shall have authority to impose disciplinary or corrective measures on a board-regulated practitioner for any or all of the following reasons:
>
> * * *
>
> (4) **Having a license or other authorization to practice the profession revoked or suspended or having other disciplinary action taken**, or an application for a license or other authorization refused, revoked or suspended **by a proper licensing authority of another state**, territory, possession or country, or a branch of the Federal Government.
>
> * * *

63 P.S. § 422.41(4) (emphasis added).

The facts deemed admitted are based on the factual allegations in the *OTSC* as well as the information contained in what are alleged to be true and correct copies of the disciplinary actions against Respondent in six states. These facts conclusively establish that Respondent's medical licenses in Wyoming, Washington, Tennessee, South Dakota, New Hampshire and Kentucky were disciplined by the proper licensing authorities of those six states. First, in Wyoming, Respondent's license was summarily suspended on November 4, 2022, and although the summary suspension was vacated and lifted on December 14, 2023, Respondent's license in Wyoming was then immediately suspended, there were restrictions placed on Respondent's ability to seek

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reinstatement of his Wyoming license, and a civil fine of $5,000.00 was imposed. Second, in Washington, Respondent's license was summarily suspended on August 3, 2023, and it was then indefinitely suspended on January 3, 2024. Third, in Tennessee, Respondent's license was suspended for a period of 90 days on January 10, 2023, and although the suspension was lifted on March 5, 2024, his license was then immediately revoked by agreed order. Fourth, in South Dakota, Respondent's license was summarily suspended on January 11, 2023, and then on March 14, 2024, Respondent voluntarily surrendered his medical license in South Dakota. Fifth, in New Hampshire, Respondent's license was suspended on December 8, 2022. Sixth, and finally, Respondent's license was suspended in Kentucky on December 21, 2022, by emergency order, for a period of 90 days, and then on February 20, 2023, Respondent's license was suspended, by amended emergency order, and he was prohibited from practicing medicine in Kentucky. Further, on February 15, 2024, by agreed order, Respondent's license to practice medicine in Kentucky was suspended for an indefinite period of time and he was prohibited from practicing medicine in Kentucky. Therefore, the Commonwealth has proven by a preponderance of the evidence[15] that Respondent's medical licenses in six states were disciplined by the proper licensing authorities of those states, as charged in the single count of the *OTSC*.

Sanction

Section 42(a) of the Act, 63 P.S. § 422.42(a), sets forth the type of disciplinary or corrective action that may be imposed for violations of the Act, including Respondent's violations of Section

[15] The degree of proof required to establish a case before an administrative tribunal in an action of this nature is a preponderance of the evidence. *Lansberry v. Pennsylvania Pub. Util. Comm'n*, 578 A.2d 600, 602 (Pa. Cmwlth. 1990), *appeal denied*, 602 A.2d 863 (Pa. 1992). A preponderance of the evidence is generally understood to mean that the evidence demonstrates a fact is more likely to be true than not to be true, or if the burden were viewed as a balance scale, the evidence in support of the Commonwealth's case must weigh slightly more than the opposing evidence. *Se-Ling Hosiery, Inc. v. Margulies*, 70 A.2d 854, 856 (Pa. 1950). The Commonwealth therefore has the burden of proving the charges against Respondent with evidence that is substantial and legally credible, not by mere "suspicion" or by only a "scintilla" of evidence. *Lansberry*, 578 A.2d at 602.

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41(4) of the Act. Specifically, Section 42(a) of the Act provides, in relevant part, as follows:

> **Section 42. Types of corrective action**
>
> **(a) Authorized actions.**—When the board is empowered to take disciplinary or corrective action against a board-regulated practitioner under the provisions of this act or pursuant to other statutory authority, the board may:
>
> * * *
>
> (2) Administer a public reprimand with or without probation.
>
> (3) Revoke, suspend, limit or otherwise restrict a license or certificate.
>
> (4) Require the board-regulated practitioner to submit to the care, counseling or treatment of a physician or a psychologist designated by the board.
>
> (5) Require the board-regulated practitioner to take refresher educational courses.
>
> (6) Stay enforcement of any suspension, other than that imposed in accordance with section 40,[16] and place a board-regulated practitioner on probation with the right to vacate the probationary order for noncompliance.
>
> * * *

63 P.S. § 422.42(a). Additionally, the Board is authorized under 63 Pa. C.S. § 3108(b)(4) to levy a civil penalty of up to $10,000.00 per violation of the Act.

The Board is charged with the responsibility and authority to oversee the profession and to regulate and license professionals to protect the public health and safety. *Barran v. State Bd. of Medicine*, 670 A.2d 765, 767 (Pa. Cmwlth. 1996), *appeal denied*, 679 A.2d 230 (Pa. 1996). With public protection in mind, the Board considers the seriousness of the violations and any mitigating evidence in fashioning a sanction fitted to the circumstances of a given disciplinary matter.

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[16] 63 P.S. § 422.40.

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Respondent's disciplinary action in Wyoming is serious because he was taken out of practice in that state because of his failure to comply with the Wyoming Board's July 22, 2022 Board Officers' Order for Alcohol, Substance and Mental Health Examination. The Board Officers' Order was based on, among other things, the following: the Wyoming Board's receipt of NPDB reports about the suspension of Respondent's clinical privileges at Davis Hospital and Medical Center in Layton, Utah, due to anesthesia charting errors; the Wyoming Board's receipt of information from Respondent indicating that The Davis Hospital Medical Executive Committee required him to undergo an evaluation at Acumen in Kansas; and the Wyoming Board's receipt of medical records from Respondent's treating physician indicating that Respondent was going against the recommendations made by Acumen.

Respondent's disciplinary actions in the other five states (Washington, Tennessee, South Dakota, New Hampshire, and Kentucky) are similarly serious because he was taken out of practice in those states as well. These five disciplinary actions stem from the disciplinary action in Wyoming, which means that they ultimately stem from the underlying events in Utah.

Respondent has not defended himself in the case now before the Board. More specifically, Respondent did not file a written answer to the *OTSC*, and he did not request a hearing in this case. Nevertheless, there is mitigating evidence to consider because Respondent attended a video hearing on May 14, 2024, regarding the reactivation of his medical license in Pennsylvania ("reactivation hearing"). During the reactivation hearing, Respondent addressed the underlying events in Utah that led to the disciplinary actions in the six states at issue in this case.

At the reactivation hearing, Respondent explained that on or about October 25, 2021, his license was summarily suspended in Utah, and he was sent to Acumen for an evaluation due to an 18% anesthesia medication discrepancy rate at Davis Hospital in Layton, Utah. Acumen concluded

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that Respondent needed to complete the following five things: 1) Proper medication and psychotherapy; 2) Construct a reasonable plan to prevent medication management problems; 3) Take a leave of absence; 4) Complete another peer review; and 5) Complete partial inpatient for physicians in recovery. Respondent further explained that the Wyoming Board directed him to complete an alcohol substance and mental health evaluation and be reevaluated by Acumen. The Wyoming Board then suspended his license after finding that Respondent failed to comply with attendance of a pre-approved alcohol substance and mental health examination by Acumen to determine his ability to practice safely and skillfully. As a result of the Wyoming license suspension, other states participating in the Interstate Medical Licensure Compact also suspended his license.

Significantly, at the reactivation hearing, Respondent explained what he had done since the disciplinary action in Utah, which triggered disciplinary actions in many other states, including the six states at issue in this case. These are the facts as found by the Board in the reactivation case. Respondent has complied with all five requirements from Acumen, including ongoing treatment with a psychiatrist and psychologist and the continuation of medication management. Respondent has been diagnosed with cyclothymia, which is a mild condition of bipolar and he has been prescribed medications and is compliant with medications for that condition. Respondent sees Mark Chase, a psychologist, as part of his aftercare program. Respondent completed another assessment with the Professional Review Network in Lawrence, Kansas, which resulted in the same recommendations as Acumen, all of which Respondent has met. Respondent took a medical leave of absence until June 2022, when he was hired for locums practice at Upper Michigan Surgical Suites in Michigan, where he did not have to repeat his errors from Davis Hospital because the Michigan facility used handwritten notes. In August 2022, Respondent accepted a full-

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time job with US Anesthesia Partners working at Sunrise Hospital in Las Vegas, Nevada. Respondent uses the Medaxion and Meditech systems for anesthesia record keeping at Sunrise Hospital and has not had any anesthesia charting errors while employed for USAP in Las Vegas, Nevada.

Given Respondent's compliance with Acumen and his adherence to appropriately handling his mental health, the Board was able to determine that Respondent did not present an immediate danger to the public and, therefore, the Board granted his request to reactivate his medical license. For those same reasons, the hearing examiner concludes in this case that it is not necessary to take Respondent out of practice by suspending or revoking his license. At the time of the reactivation hearing on May 14, 2024, Respondent had active licenses to practice medicine in California, Nevada, and Utah. Although Respondent did not have active licenses in any of the six states at issue in this case, it is determinative that Respondent had an active license in Utah because the underlying events in Utah triggered the disciplinary actions in the six states at issue in this case. It is also determinative that at the time of the reactivation hearing on May 14, 2024, Respondent had been working as an anesthesiologist with USAP at Sunrise Hospital in Las Vegas, Nevada, for almost two years without any charting errors.

For the foregoing reasons, the hearing examiner believes that a public reprimand is the appropriate sanction in this case. A public reprimand will protect the public health and safety because it will alert Pennsylvania's citizens to Respondent's disciplinary actions in the states at issue in this case, as well as the remedial measures Respondent has taken since then, thereby allowing anyone who inquires to make an informed decision based upon the public information available.

Accordingly, based upon the foregoing, the following order shall issue:

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COMMONWEALTH OF PENNSYLVANIA
DEPARTMENT OF STATE
BEFORE THE STATE BOARD OF MEDICINE

Commonwealth of Pennsylvania,	:	
Bureau of Professional and	:	
Occupational Affairs	:	
	:	**Case No. 24-49-003963**
vs.	:	
	:	
Eric Clark Welling, M.D.,	:	
Respondent	:	

ORDER

AND NOW, this **12th** day of **December 2025,** upon consideration of the foregoing findings of fact, conclusions of law and discussion, it is **ORDERED** that the license to practice medicine and surgery issued to Respondent, Eric Clark Welling, M.D., license no. MD477850, shall be issued a **PUBLIC REPRIMAND**.

This order shall take effect twenty (20) days from the date of mailing shown below unless otherwise ordered by the State Board of Medicine.

BY ORDER:

Hope S. Goldhaber

Hope S. Goldhaber
Hearing Examiner

For Respondent: Eric Clark Welling, M.D.
6599 S. Juliet Way
Salt Lake City, UT 84121
Also sent by email: **welling.eric@gmail.com**

For the Commonwealth: Jason Anderson, Esquire
Prosecuting Attorney
COMMONWEALTH OF PENNSYLVANIA
DEPARTMENT OF STATE
P.O. Box 69521
Harrisburg, PA 17106-9521
Also sent by email: **jasoanders@pa.gov**

Date of Mailing: December 12, 2025

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NOTICE

REHEARING AND/OR RECONSIDERATION: A party may file an application for rehearing or reconsideration within 15 days of the mailing date of this adjudication and order. The application must be captioned *"Application for Rehearing, "Application for Reconsideration,"* or *"Application for Rehearing or Reconsideration."* It must state specifically and concisely, in numbered paragraphs, the grounds relied upon in seeking rehearing or reconsideration, including any alleged error in the adjudication. If the adjudication is sought to be vacated, reversed, or modified by reason of matters that have arisen since the hearing and decision, the matters relied upon by the petitioner must be set forth in the application.

APPEAL TO BOARD: An application to the State Board of Medicine for review of the hearing examiner's adjudication and order must be filed by a party within 20 days of the date of mailing of this adjudication and order. The application must be captioned *"Application for Review."* It must state specifically and concisely, in numbered paragraphs, the grounds relied upon in seeking the Board's review of the hearing examiner's decision, including any alleged error in the adjudication. Within an application for review a party may request that the Board hear additional argument and take additional evidence.

An application to the Board to review the hearing examiner's decision may be filed irrespective of whether an application for rehearing or reconsideration is filed. However, the filing of an application for rehearing and/or reconsideration does not extend, or in any other manner affect, the time period in which an application for review may be filed.

STAY OF HEARING EXAMINER'S ORDER: Neither the filing of an application for rehearing and/or reconsideration nor the filing of an application for review operates as a stay of the hearing examiner's order. To seek a stay of the hearing examiner's order, the party must file an application for stay directed to the Board.

FILING AND SERVICE: The application for rehearing and/or reconsideration shall be filed with:

Prothonotary
P.O. Box 60130
Harrisburg, PA 17106-0130

A copy of all applications must also be served on all parties.

Applications must be received for filing by the Prothonotary within the time limits specified. The date of receipt at the office of Prothonotary, and not the date of deposit in the mail, is determinative.

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NOTICE

The attached Final Order represents the final agency decision in this matter. It may be appealed to the Commonwealth Court of Pennsylvania by the filing of a Petition for Review with that Court within thirty (30) days after the entry of the order in accordance with the Pennsylvania Rules of Appellate Procedure. See Chapter 15 of the Pennsylvania Rules of Appellate Procedure entitled "Judicial Review of Governmental Determinations," Pa. R.A.P 1501 – 1561. Please note: An order is entered on the date it is mailed. If you take an appeal to the Commonwealth Court, you must serve the Board with a copy of your Petition for Review. The agency contact for receiving service of such an appeal is:

Board Counsel
P.O. Box 69523
Harrisburg, PA 17106-9523

The name of the individual Board Counsel is identified on the Final Order.

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